

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

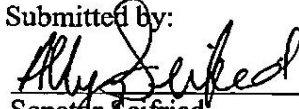
No. 1

☐ COMMITTEE AMENDMENT

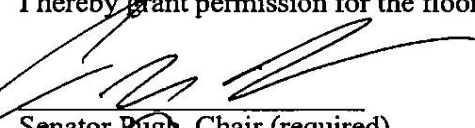
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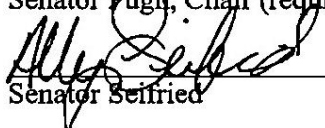
I move to amend Senate Bill No. 1360, by substituting the attached floor substitute (Request #3832) for the title, enacting clause, and entire body of the measure.

Submitted by:


Senator Seifried

I hereby grant permission for the floor substitute to be adopted.


Senator Pugh, Chair (required)


Senator Seifried

Senator Deever

Senator Dossett

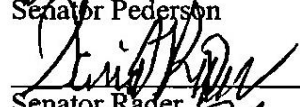
Senator Hicks

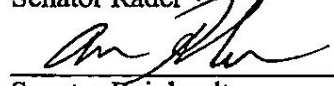

Senator Hines

Senator Paxton, President Pro Tempore

Senator Mann


Senator Pederson


Senator Rader

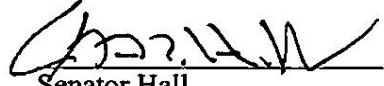

Senator Reinhardt

Senator Sacchieri

Senator Daniels, Majority Floor
Leader

Note: Education committee majority requires six (6) members' signatures.

I hereby grant permission for the floor substitute to be adopted.


Senator Hall
Appropriations Committee Chair

Seifried-EB-FS-SB1360

3/18/2026 4:04 PM

(Floor Amendments Only)

Date and Time Filed: 3-23-26

1:53pm 

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1360

By: Seifried of the Senate

and

Moore of the House

FLOOR SUBSTITUTE

[mathematics instruction - report - Office of
Mathematics Improvement - screening instruments -
list - codification - effective date -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508, as
last amended by Section 10, Chapter 492, O.S.L. 2025 (70 O.S. Supp.
2025, Section 1210.508), is amended to read as follows:

Section 1210.508. A. 1. By no later than December 31, 2016,
the State Board of Education shall adopt a statewide system of
student assessments in compliance with the Elementary and Secondary
Education Act of 1965 (ESEA), as reauthorized and amended by P.L.
No. 114-95, also known as the Every Student Succeeds Act (ESSA).

2. The statewide student assessment system adopted by the Board
pursuant to this subsection shall be aligned with the Oklahoma

1 Academic Standards as adopted by the Board and which prepare
2 students for college and careers.

3 B. 1. The Board shall issue a request for proposals for the
4 selection of assessments to be administered to students in grades
5 three through twelve as a part of the statewide student assessment
6 system adopted by the Board pursuant to this section.

7 2. The Board shall adopt assessments from the selected
8 proposals that were submitted pursuant to paragraph 1 of this
9 subsection. The adopted assessments shall be administered by the
10 Board for a period that is in coordination with the six-year subject
11 area textbook adoption cycle unless the vendor does not fulfill the
12 terms of the contract or fails to comply with or violates the terms
13 of the contract. The Board shall administer the assessments
14 beginning with the 2017-2018 school year.

15 C. The statewide student assessment system adopted by the Board
16 pursuant to this section shall include assessments that:

17 1. Are aligned with the Oklahoma subject matter standards as
18 adopted by the Board;

19 2. Provide a measure of comparability among other states;

20 3. Yield both norm-referenced scores and criterion-referenced
21 scores;

22 4. Have a track record of statistical reliability and accuracy;

23 and
24

1 5. For assessments administered in high school, provide a
2 measure of future academic performance.

3 D. For the 2016-2017 school year, the Board shall administer
4 assessments in:

5 1. English Language Arts or reading and mathematics in grades
6 three through eight and at least once in high school, during the
7 grade span of nine through twelve;

8 2. Science not less than once during each grade span of three
9 through five, six through nine, and ten through twelve; and

10 3. United States History not less than once during the grade
11 span of nine through twelve.

12 E. 1. Beginning with the 2017-2018 school year, the statewide
13 student assessment system shall include assessments in:

14 a. English Language Arts and mathematics in grades three
15 through eight and at least once in high school, during
16 the grade span of nine through twelve,

17 b. science not less than once during each grade span of
18 three through five, six through nine, and ten through
19 twelve, and

20 c. United States History, with an emphasis on civics, not
21 less than once during the grade span of nine through
22 twelve.

23 2. Beginning with the 2017-2018 school year, the statewide
24 student assessment system may include:

- a. assessments in reading, writing, and mathematics in certain grades as determined by the Board, and
- b. contingent upon the availability of funds, an additional nationally recognized college- and career-readiness assessment or assessments as recommended by the State Department of Education, which will be administered to students in high school at no cost to the student.

F. 1. Beginning with students entering the ninth grade in the 2017-2018 school year, each student shall take the assessment or assessments included in the statewide student assessment system adopted by the Board pursuant to subsection A of this section in order to graduate from a public high school with a standard diploma. All students shall take the assessment or assessments prior to graduation, unless otherwise exempt by law.

2. Beginning with students entering the ninth grade in the 2017-2018 school year, each student, in addition to taking the assessment or assessments included in the statewide student assessment system adopted by the Board pursuant to subsection A of this section, shall meet any other high school graduation requirements adopted by the Board pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd Session of the 55th Oklahoma Legislature in order to graduate from a public high school with a standard diploma.

1 3. For students who start the ninth grade prior to or during
2 the 2016-2017 school year, school districts shall adopt a plan that
3 establishes the assessment or assessments those students are
4 required to take in order to graduate from a public high school with
5 a standard diploma. The plan may also include any or all of the
6 other high school graduation requirements adopted by the Board
7 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
8 Session of the 55th Oklahoma Legislature that those students will be
9 required to meet in order to graduate from a public high school with
10 a standard diploma.

11 4. The Board shall promulgate rules to ensure that students who
12 transfer into ~~an Oklahoma~~ a school district in this state from out-
13 of-state after the junior year of high school shall not be denied
14 the opportunity to be awarded a standard diploma due to differing
15 testing requirements.

16 G. In order to provide an indication of the levels of
17 competency attained by the student in a permanent record for
18 potential future employers and institutions of higher education,
19 school districts shall report on the high school transcript of the
20 student the highest-achieved score on the assessment or assessments
21 included in the statewide student assessment system adopted by the
22 Board pursuant to subsection A of this section and any business- and
23 industry-recognized endorsements attained.

1 H. Students who do not perform at a proficiency level on
2 assessments shall be remediated as established in the assessment
3 requirements adopted by the Board pursuant to Section 5 of Enrolled
4 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
5 Legislature, subject to the availability of funding.

6 I. 1. All assessments required by this section shall measure
7 academic competencies in correlation with the subject matter
8 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
9 103.6a of this title and referred to as the Oklahoma Academic
10 Standards. The State Board of Education shall evaluate the subject
11 matter standards to ensure the competencies reflect high standards,
12 are specific, well-defined, measurable, and challenging, and will
13 prepare elementary students for next-grade-level course work and
14 secondary students for postsecondary studies at institutions of
15 higher education or technology center schools without the need for
16 remediation. All subject matter standards shall reflect the goals
17 as set forth in Section 11-103.6 of this title and of improving the
18 state average of college entrance exam scores.

19 2. The State Department of Education shall annually evaluate
20 the results of the assessments. The State Board of Education shall
21 ensure that preliminary results for all statewide assessments are
22 reported to districts no later than June 20 of each year and are
23 presented in a manner that yields detailed, diagnostic information
24 for the purpose of guiding instruction and student remediation. As

1 improvements are made to the assessments required by this section,
2 the Board shall seek to increase the depth of knowledge assessed for
3 each subject. The State Board of Education shall seek to ensure
4 that data yielded from the assessments required in this section ~~are~~
5 is utilized at the school district level to inform instruction,
6 professional development, school improvement, and remediation for
7 students.

8 3. The Commission for Educational Quality and Accountability
9 shall determine the cut scores for the performance levels on all
10 statewide assessments. The Commission shall conduct an ongoing
11 review to compare the statewide assessment content and performance
12 descriptors with those of other states. Upon receipt of the review,
13 the Commission may adjust the cut scores as necessary.

14 4. The State Board of Education, for the purposes of conducting
15 reliability and validity studies, monitoring contractor adherence to
16 professionally accepted testing standards, and providing
17 recommendations for testing program improvement, shall retain the
18 services of an established, independent agency or organization that
19 is nationally recognized for its technical expertise in educational
20 testing but is not engaged in the development of aptitude or
21 achievement tests for elementary or secondary level grades. These
22 national assessment experts shall annually conduct studies of the
23 reliability and validity of the statewide assessments administered
24

pursuant to this section. Validity studies shall include studies of decision validity and concurrent validity.

J. 1. The State Board of Education shall promulgate rules setting the assessment window dates for each statewide assessment so that the assessments are administered according to recommended testing protocols and so that the assessment results are reported back to school districts in a timely manner. The vendor shall provide a final electronic data file of all school site, school district, and state results to the State Department of Education and the Office of Educational Quality and Accountability prior to August 20 of each year. The Department shall forward the final data files for each school district and each school site in that district to the school district. The Board shall ensure the contract with the vendor includes a provision that the vendor report assessment results directly to the Office of Educational Quality and Accountability at the same time ~~it is~~ they are reported to the Board.

2. State, district, and site level results of all assessments required in this section shall be disaggregated by gender, race, ethnicity, disability status, migrant status, English proficiency, and status as economically disadvantaged, except that such disaggregation shall not be required in a case in which the number of students in a category is insufficient to yield statistically reliable information or the results would reveal personally

1 identifiable information about an individual student. Each school
2 site shall notify the student's parents or legal guardians of the
3 school's performance levels in the Oklahoma School Testing Program
4 as reported in the Oklahoma Educational Indicators Program at the
5 end of each school year.

6 K. The State Board of Education shall be responsible for the
7 field-testing and validation of the statewide assessment system
8 required in subsection A of this section.

9 L. The State Board of Education shall develop, administer, and
10 incorporate as a part of the Oklahoma School Testing Program other
11 assessment programs or procedures including appropriate
12 accommodations for the assessment of students with disabilities as
13 required by the Individuals with Disabilities Education Act (IDEA),
14 20 U.S.C., Section 1400 et seq.

15 M. For purposes of developing and administering alternate
16 assessments for students with the most significant cognitive
17 disabilities, the State Board of Education shall not be subject to
18 subsections D and E of Section 11-103.6a of this title.

19 N. By ~~December 15, 2026~~ December 15, 2028, and annually
20 thereafter, the State Board of Education shall electronically submit
21 a report to the Legislature containing data collected for the most
22 recently completed school year on the number and demographics of
23 students who were eligible for advanced mathematics courses, the
24 number and demographics of students who were placed in advanced

1 mathematics courses, the number and demographics of students placed
2 in mathematics intervention courses, and the number and demographics
3 of students not placed in advanced mathematic courses or mathematic
4 intervention courses. The report shall include information on the
5 type and format of advanced mathematic courses and the type and
6 format of mathematic intervention courses.

7 O. The State Board of Education shall provide guidance on how
8 to best develop programming and courses to ensure all impacted
9 students receive rigorous, academically appropriate instruction in
10 mathematics.

11 SECTION 2. AMENDATORY Section 2, Chapter 492, O.S.L.
12 2025 (70 O.S. Supp. 2025, Section 1210.900), is amended to read as
13 follows:

14 Section 1210.900. A. ~~Sections 2~~ This section through ~~&~~ Section
15 1210.907 of this ~~act~~ title shall be known and may be cited as the
16 "Oklahoma Math Achievement and Proficiency Act".

17 B. The Legislature finds that it is essential for children
18 enrolled in the public schools in this state to develop strong
19 mathematical proficiency early and consistently. The Legislature
20 further finds that clear and visible goals, assessments to determine
21 math proficiency at each school, the use of scientifically based and
22 researched methodologies in math instruction, along with regular and
23 periodic measurements of school math improvement, and accountability
24 at each level of the educational system will result in a significant

1 increase in the number of children performing at or above grade
2 level in mathematics.

3 C. The purpose of the Oklahoma Math Achievement and Proficiency
4 Act is to ensure that student achievement in math is encouraged and
5 progression from one grade to another is determined, in part, upon
6 proficiency in mathematics, that school district board of education
7 policies facilitate promotion of advanced math instruction and
8 intervention services to address student math needs, and that each
9 student and his or her parent or legal guardian be informed of the
10 student's progress in mathematics.

11 D. Each public school district in this state shall ensure that
12 all students receive a well-rounded education focused on building
13 deep foundations in mathematics, reading, and writing. The State
14 Board of Education shall encourage school districts to integrate the
15 teaching of the other curricular areas in subject matter standards
16 adopted by the Board with the instruction of mathematics, reading,
17 and writing.

18 E. All teachers of mathematics in the public schools in this
19 state shall have access to training in evidence-based professional
20 development programs to deepen their content knowledge, learn
21 specific effective and impactful teaching strategies, and develop
22 productive dispositions toward math, and then incorporate into
23 instruction the foundational elements of math instruction, including
24 the development of grade-level appropriate mathematical proficiency

1 which is a combination of real-world problem-solving skills,
2 procedural fluency, conceptual understanding, and productive
3 dispositions.

4 F. 1. There is hereby created within the State Department of
5 Education an Office of Mathematics Improvement, which shall be
6 created within ninety (90) days of the effective date of this act.
7 The Superintendent of Public Instruction shall appoint a Director of
8 the Office of Mathematics Improvement whose exclusive focus shall be
9 mathematics instruction for students in grades kindergarten through
10 five. The Director shall have experience in administrative duties,
11 in teaching mathematics in a public or private elementary school,
12 and as an elementary mathematics specialist, coach, or
13 administrator.

14 2. The Director of the Office of Mathematics Improvement shall:

- 15 a. monitor implementation of screening instruments,
16 diagnostic assessments, and formative assessments for
17 grades kindergarten through five to identify students
18 in need of support for key numeracy concepts,
19 b. recommend training and support for educators for the
20 effective implementation and interpretation of
21 diagnostic tools. The diagnostic tool shall be used
22 with students who have been identified with
23 deficiencies in mathematics based on screening
24 instruments, diagnostic assessments, formative

- 1 assessments, benchmark assessments, teacher
2 observation, or any combination thereof,
3 c. designate a team of educators to explore the
4 connection between difficulties with number sense and
5 dyscalculia as well as possible effective screening
6 instruments,
7 d. commit necessary resources to understanding the needs
8 of students struggling with number sense or
9 dyscalculia, or both, before implementing
10 instructional practices or assessments that could
11 adversely affect student learning,
12 e. monitor the implementation and progress of summer
13 mathematics academies,
14 f. recommend changes and improvements to any professional
15 development providers and public schools in this state
16 based on data collected and analyzed by the Office of
17 Mathematics Improvement, and
18 g. monitor the implementation and progress of the
19 Oklahoma Math Achievement and Proficiency Act.

20 SECTION 3. AMENDATORY Section 3, Chapter 492, O.S.L.

21 2025 (70 O.S. Supp. 2025, Section 1210.901), is amended to read as
22 follows:

23 Section 1210.901. A. To identify students who have a math
24 deficiency including students with characteristics of dyscalculia,

1 each student enrolled in second, third, fourth, and fifth grade in a
2 public school in this state shall be screened at the beginning,
3 middle, and end of each school year for math proficiency including,
4 but not limited to, real-world problem-solving skills, procedural
5 fluency, conceptual understanding, and productive dispositions. A
6 screening instrument approved by the State Board of Education shall
7 be utilized for the purposes of this section. In determining which
8 screening instrument to approve, the State Board of Education shall
9 take into consideration, at a minimum, the following factors:

10 1. The time required to conduct the screening instrument with
11 the intention of minimizing the impact on instructional time;

12 2. The timeliness in reporting screening instrument results to
13 teachers, administrators, and parents or legal guardians of
14 students; and

15 3. The integration of the screening instrument into the math
16 curriculum.

17 B. Beginning in the ~~2026-2027~~ 2027-2028 school year, the State
18 Board of Education shall approve a list of three screening
19 instruments for use at the beginning, middle, and end of the school
20 year for monitoring progress and measurement of math proficiency as
21 required in subsection A of this section. The screening instruments
22 shall be chosen from a list of recommendations from the Office of
23 Mathematics Improvement within the State Department of Education.
24 The screening instrument shall:

1 1. Assess mathematical proficiency, which is a combination of
2 real-world problem-solving skills, procedural fluency, conceptual
3 understanding, and productive dispositions for the grade level as
4 defined by the state's subject matter standards;

5 2. Document the validity and reliability of each assessment;

6 3. Be used for identifying students who are at risk for math
7 deficiencies and for progress monitoring throughout the school year;

8 4. Be used to assess students with disabilities and English
9 language learners; and

10 5. Be accompanied by a data management system that provides
11 profiles of students, class, grade level, and school building. The
12 profiles shall identify each student's instructional point of need,
13 competency for advanced math coursework, and math proficiency level.
14 The State Board of Education shall also determine other comparable
15 math assessments for diagnostic purposes to be used for students at
16 risk of math failure.

17 C. 1. Exemptions to the screening requirements required by
18 this section may be provided to students who have documented
19 evidence that they meet at least one of the following criteria as
20 related to the provision of classroom instruction:

21 a. the student participates in the Oklahoma Alternate
22 Assessment Program (OAAP) and is taught using
23 alternate methods,
24

- b. the student's primary expressive or receptive communication is sign language,
- c. the student's primary form of written or read text is Braille, or
- d. the student's primary expressive or receptive language is not English, the student is identified as an English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP math essential elements, proficiency in sign language and mathematical reasoning, and proficiency in Braille and mathematical concepts.

D. 1. Students who are administered a screening instrument pursuant to subsection A of this section and are found to be exceeding grade-level targets shall be provided advanced learning opportunities in mathematics approved for that student's grade level. No student who qualifies pursuant to this subsection shall be removed from the advanced learning opportunity provided to the

1 student unless a parent or legal guardian of the student provides
2 written consent for the student to be excluded or removed after
3 being adequately informed that the student's placement was
4 determined by the student's achievement on the screening instrument.

5 2. Students who are administered a screening instrument
6 pursuant to subsection A of this section and are found not to be
7 meeting grade-level targets shall be provided a program of math
8 instruction designed to enable students to acquire the appropriate
9 grade-level math proficiency. The program of math instruction shall
10 be based on scientific math research and align with the subject
11 matter standards adopted by the State Board of Education. A program
12 of math instruction shall include:

- 13 a. sufficient additional in-school instructional time for
14 the acquisition of mathematical proficiency, which is
15 a combination of real-world problem-solving skills,
16 procedural fluency, conceptual understanding, and
17 productive dispositions,
- 18 b. if necessary and if funding is available, tutorial
19 instruction after regular school hours, on Saturdays,
20 and during summer; however, such instruction may not
21 be counted toward the ~~one-hundred-eighty-day~~ one-
22 hundred-eighty-one-day or ~~one-thousand-eighty-hour~~
23 one-thousand-eighty-six-hour school year required in
24

1 Section 1-109 of ~~Title 70 of the Oklahoma Statutes~~
2 this title,

- 3 c. assessments identified for diagnostic purposes and
4 periodic monitoring to measure the acquisition of math
5 proficiency including, but not limited to, real-world
6 problem-solving skills, procedural fluency, conceptual
7 understanding, and productive dispositions, as
8 identified in the student's program of math
9 instruction,
- 10 d. high-quality instructional materials grounded in
11 scientifically based math research, and
- 12 e. a means of providing every family of a student in
13 second, third, fourth, and fifth grade access to free
14 online evidence-based math instruction resources to
15 support the student's math development at home.

16 3. A student enrolled in second, third, fourth, ~~and~~ or fifth
17 grade who exhibits a deficiency in math at any time based on the
18 screening instrument administered pursuant to subsection A of this
19 section shall receive an individual math intervention plan no later
20 than thirty (30) days after the identification of the deficiency in
21 math. The math intervention plan shall be provided in addition to
22 core math instruction that is provided to all students. The math
23 intervention plan shall:

- a. describe the research-based math intervention services the student will receive to remedy the deficiency in math,
- b. provide explicit and systematic instruction in real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions, as applicable,
- c. monitor the math progress of each student's math proficiency throughout the school year and adjust instruction according to the student's needs, and
- d. continue until the student is determined to be meeting grade-level targets in math based on screening instruments administered pursuant to subsection A of this section or assessments identified for diagnostic purposes and periodic monitoring pursuant to subparagraph c of paragraph 2 of this subsection.

4. The math intervention plan for each student identified with a deficiency in math shall be developed by a student math proficiency team and shall include supplemental instructional services and supports. Each team shall be comprised of:

- a. the parent or legal guardian of the student,
- b. the teacher assigned to the student who had responsibility for math instruction in that academic year,

1 c. a teacher who is responsible for math instruction and
2 is assigned to teach in the next grade level of the
3 student, and

4 d. a teacher who specializes in math interventions, if
5 one is available.

6 5. A school district shall notify the parent or legal guardian
7 of any student in second, third, fourth, and fifth grade who
8 exhibits a deficiency in math at any time based on the screening
9 instrument administered pursuant to subsection A of this section.
10 The notification shall occur no later than thirty (30) days after
11 the identification of the deficiency in math.

12 SECTION 4. AMENDATORY Section 4, Chapter 492, O.S.L.
13 2025 (70 O.S. Supp. 2025, Section 1210.902), is amended to read as
14 follows:

15 Section 1210.902. A. Contingent on the provision of
16 appropriated funds designated for the Oklahoma Math Achievement and
17 Proficiency Act, public school districts may be allocated monies for
18 each enrolled second-, third-, fourth-, and fifth-grade student of
19 the current school year who is found to be in need of remediation or
20 intensive intervention services in mathematics. The allocation
21 shall be distributed to each public school district upon approval of
22 the strong math plan for the school district by the State Board of
23 Education and the submittal of a child-count report to the State
24 Department of Education that details the number of students

1 identified as needing remediation or intensive intervention services
2 in mathematics. To determine a per-student allocation amount, the
3 total amount of funds available for allocation each year shall be
4 divided by the total number of students in the state identified as
5 in need of remediation or intensive intervention services in
6 mathematics as provided for in Section ~~3~~ 1210.901 of this ~~act~~ title.
7 Each public school district shall be allocated an amount equal to
8 the per-student allocation amount multiplied by the number of
9 identified students enrolled in the school district.

10 B. Public school districts receiving more than Two Thousand
11 Five Hundred Dollars (\$2,500.00) pursuant to subsection A of this
12 section shall spend no less than ten percent (10%) to provide
13 professional development for teachers. The professional development
14 shall include training in scientifically based math research
15 including how students learn mathematical concepts; training in
16 providing explicit and systematic instruction in real-world problem-
17 solving skills, procedural fluency, conceptual understanding, and
18 productive dispositions; implementing math strategies that research
19 has shown to be successful in improving math proficiency among
20 students with math difficulties; courses leading to a micro-
21 credential in mathematics; and instructional materials required for
22 implementation.

23 C. The Office of Mathematics Improvement within the State
24 Department of Education shall approve and publish a list of

professional development programs and providers that are evidence-based and directly address the cognitive science of how students learn mathematics for which districts are permitted to use the funds received pursuant to this section.

D. If a teacher attends and completes a professional development institute in elementary math approved by the Commission for Educational Quality and Accountability during the summer or when school is not in session, the teacher may receive a stipend equal to the amount of the cost for a substitute teacher, based on the amount of funds allocated.

SECTION 5. AMENDATORY Section 5, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.903), is amended to read as follows:

Section 1210.903. A. If a teacher determines that a student in second, third, fourth, and fifth grade is performing above grade level in mathematics by the start of the second quarter of the school year, the parent or legal guardian of the student shall be notified of:

1. The math proficiency level of the student;
2. The program of advanced math instruction available for the student; and
3. The potential for the student to participate in a summer academy or other program designed to assist the student in excelling in mathematics.

1 B. If a teacher determines that a student in second, third,
2 fourth, ~~and~~ or fifth grade is not performing at grade level in
3 mathematics by the start of the second quarter of the school year,
4 the parent or legal guardian of the student shall be notified of:

5 1. The math proficiency level of the student;

6 2. The program of math instruction for the student as required
7 pursuant to ~~this act~~ the Oklahoma Math Achievement and Proficiency
8 Act; and

9 3. The potential need for the student to participate in a
10 summer academy or other program designed to assist the student in
11 attaining grade-level math proficiency.

12 C. A teacher who determines a student in second, third, fourth,
13 ~~and~~ or fifth grade is exceeding or not meeting grade-level targets
14 for mathematics may, after consultation with the parent or legal
15 guardian of the student, recommend that the student participate in
16 and complete a summer academy or other program.

17 D. Summer academy programs shall be designed to ensure that
18 participating students successfully complete an advanced
19 mathematical program or grade-level competencies in mathematics to
20 enhance next-grade readiness. A summer academy math program shall
21 be a program that incorporates the content of a scientifically
22 research-based professional development program administered by the
23 Commission for Educational Quality and Accountability or a
24 scientifically research-based math program administered by the State

1 Board of Education which is taught by teachers who have successfully
2 completed professional development in the math program. All summer
3 academy programs shall consist of a minimum of three (3) consecutive
4 days. ~~The State Department of Education shall provide a list of~~
5 ~~qualified entities for providing the summer academy programs to all~~
6 ~~schools by April 1, 2026.~~

7 E. School districts may approve an option for students who are
8 unable to attend a summer academy. The optional program may
9 include, but not be limited to, an approved private provider of
10 instruction, approved computer- or Internet-based instruction, or an
11 approved program of math instruction monitored by the parent or
12 legal guardian of the student. Public school districts shall not be
13 required to pay for the optional program but shall clearly
14 communicate to the parent or legal guardian the expectations of the
15 program and any costs that may be involved.

16 F. Subject to the availability of funds, beginning one (1) year
17 after implementation of this section, the requirements of subsection
18 C of this section may be expanded to apply to students in first
19 grade. Each year thereafter, the requirements may be expanded by
20 one grade level until the requirements apply to kindergarten
21 students through fifth-grade students. Summer academy programs
22 shall be designed for each grade level. Nothing in this section
23 shall prevent the State Board of Education or a school district
24

1 board of education from utilizing private, local, or federal funds
2 to implement the provisions of this section.

3 G. The State Board of Education shall promulgate rules to
4 implement the provisions of this section, which shall include
5 requirements for instructional time for summer academy programs,
6 teacher qualifications, and evaluation of student achievement as a
7 result of summer academy programs or other optional programs.

8 SECTION 6. AMENDATORY Section 8, Chapter 492, O.S.L.
9 2025 (70 O.S. Supp. 2025, Section 1210.907), is amended to read as
10 follows:

11 Section 1210.907. A. Beginning with the ~~2026-2027~~ 2027-2028
12 school year and for each school year thereafter, any student
13 enrolled in second, third, fourth, and fifth grade in a public
14 school in this state who is assessed through the Oklahoma Math
15 Achievement and Proficiency Act pursuant to Section ~~3~~ 1210.901 of
16 this ~~act~~ title, and who is not meeting grade-level targets in
17 mathematics after the beginning-of-the-year screening instrument,
18 shall be screened for dyscalculia. Screening also may be requested
19 for a student by his or her parent or legal guardian, teacher, or
20 counselor. A student who is identified with characteristics of
21 dyscalculia shall not be required to be rescreened unless requested
22 by his or her parent or legal guardian. Nothing in this section
23 shall preclude a school district from administering a dyscalculia
24 screening tool to identify, refer, evaluate, or provide appropriate

1 services to any student suspected of having dyscalculia or another
2 math-related disorder prior to the 2027-2028 school year.

3 B. No later than ~~December 31, 2025~~ February 28, 2027, the State
4 Board of Education, in consultation with the Office of Mathematics
5 Improvement within the State Department of Education, shall develop
6 policies for dyscalculia screening required pursuant to this section
7 and shall include, but not be limited to:

8 1. The definition and characteristics of dyscalculia and
9 related disorders;

10 2. The process for referring students in grades two through
11 five for screening;

12 3. A process for providing notification to parents or legal
13 guardians of the use of a qualified ~~dyscalculia-screening~~
14 dyscalculia screening tool and notification of the results of the
15 screening;

16 4. A process for providing the parents or legal guardians of
17 students screened for dyscalculia with information and resource
18 material regarding dyscalculia;

19 5. A process for monitoring the student's progress after the
20 positive identification of characteristics of dyscalculia or other
21 math-related disorders; and

22 6. Requirements and qualifications for screeners that
23 demonstrate an understanding of and training to administer the
24 screening instrument.

1 C. The Board shall adopt a list of approved qualified
2 dyscalculia screening tools based on recommendations from the Office
3 of Mathematics Improvement within the State Department of Education
4 that address developmentally appropriate components.

5 D. Screening shall be conducted in accordance with the policies
6 developed by the State Board of Education pursuant to subsection B
7 of this section and the guidance within the dyslexia and dysgraphia
8 handbook developed pursuant to Section 1210.517 of ~~Title 70 of the~~
9 ~~Oklahoma Statutes~~ this title including policies and information
10 developed relating to universal screening of students for
11 characteristics of dyscalculia.

12 E. Beginning ~~June 30, 2026~~ June 30, 2028, and June 30 each year
13 thereafter, public school districts shall provide the following data
14 to the State Department of Education:

15 1. The number of students by grade level in grades two through
16 five who were screened for dyscalculia in a school year;

17 2. The number of students by grade level in grades two through
18 five who were newly identified as having characteristics of
19 dyscalculia in a school year;

20 3. The process or tools used to evaluate student progress;

21 4. The number of trained school system personnel or licensed
22 professionals used to administer the qualified dyscalculia screening
23 tool;

1 5. The number of students in grades two through five who were
2 participating in interventions within the school setting and the
3 number of students participating in interventions outside the school
4 setting; and

5 6. The programs used by districts for intervention within the
6 school setting.

7 F. The State Department of Education shall designate personnel
8 to provide technical assistance to implement the provisions of ~~this~~
9 ~~act~~ the Oklahoma Math Achievement and Proficiency Act.

10 G. By ~~December 31, 2026~~ December 31, 2028, and by December 31
11 each year thereafter, the State Department of Education shall
12 electronically provide a report containing all of the data provided
13 pursuant to subsection E of this section to the Governor and
14 Legislature and make the report available on the Department's
15 website.

16 H. As funds are available, ~~beginning with the 2026-2027 school~~
17 ~~year~~, the Department shall provide training on the best practices
18 for screening for dyscalculia.

19 I. The State Board of Education may promulgate rules to
20 implement the provisions of this section.

21 SECTION 7. This act shall become effective July 1, 2026.

22 SECTION 8. It being immediately necessary for the preservation
23 of the public peace, health, or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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